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IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
COUNTY DEPARTMENT, DOMESTIC RELATIONS DIVISION

IN RE THE MARRIAGE OF:	)	
	)	
LUISA ARIAS MONTEALEGRE,	)	
Petitioner,	)	
	)	
and	)	Case No.
	)	
NICHOLAS BIANCHI,	)	
Respondent.	)	

PETITION FOR DISSOLUTION OF MARRIAGE

NOW COMES the Petitioner, LUISA ARIAS MONTEALEGRE (“Luisa”), by and through her attorneys, BERLIN MELZER LAW LLC, pursuant to Section 401 *et. seq.* of the Illinois Marriage and Dissolution of Marriage Act (“IMDMA”) (750 ILCS 5/401 *et. seq.*), and in support of her Petition for Dissolution of Marriage, Luisa respectfully states as follows:

1. Luisa and the Respondent, NICHOLAS BIANCHI (“Nicholas”) were lawfully married December 30, 2022 in Chicago, Cook County, Illinois, where said marriage was lawfully registered.
2. Luisa is thirty-nine (39) years of age, a resident of Cook County, State of Illinois and has maintained said residency for a period in excess of ninety (90) days next preceding the commencement of this action. She is currently on medical leave from her job, however, Luisa recently accepted a new position as a spa attendant at the Four Seasons Spa. As of the filing of this instant Petition, Luisa has not officially started her new job.
3. Nicholas is forty (40) years of age, a resident of Cook County, State of Illinois and has maintained said residency for a period in excess of ninety (90) days next preceding the commencement of this action. Upon information and belief, Nicholas is presently self-employed as a part-owner of Aribia, LLC. Luisa does not have personal knowledge or information as to any other additional employment Nicholas may have.

4. The parties were lawfully married on December 30, 2022, in Chicago, Cook County, Illinois, where said marriage was registered.

5. To the best of Luisa's knowledge, no Petition for Legal Separation or Petition for Dissolution of Marriage is now pending in any other county or state.

6. No children were born to or adopted by the parties as a result of their marriage and relationship, and Luisa is not now pregnant.

7. The parties will have been living separate and apart for a continuous period in excess of six (6) months preceding the entry of the Judgment for Dissolution of Marriage pursuant to Section 5/401(a-5) of the IMDMA, such that there will be an irrebuttable presumption that the requirement of irreconcilable differences has been met. Irrespective, irreconcilable differences have caused the irretrievable breakdown of the marriage and the court should determine that efforts at reconciliation have failed or that future attempts at reconciliation would be impracticable and not in the best interests of the parties pursuant to 750 ILCS 5/401(a).

8. Nicholas is able-bodied, gainfully employed, and in possession of income and financial resources sufficient to support himself.

9. Nicholas is not entitled to maintenance pursuant to 750 ILCS 5/504(a) and he should therefore be barred from receiving maintenance, temporary or otherwise.

10. Luisa lacks sufficient property and income to provide for her reasonable needs, both temporary and permanent, and she is without sufficient resources to meet her needs independently commensurate with the standard of living established during the marriage. Upon information and belief, Nicholas earns a substantial income and is well able to provide Luisa with maintenance, both temporary and permanent, in accordance with his needs and commensurate with the standard of living established during the marriage.

11. Further, Luisa has a degenerative health condition which shall permanently affect Luisa's earning capacity and her income earning capacity.

12. Luisa should be granted a maintenance award pursuant to 750 ILCS 5/504(a) of the IMDMA.

13. During the marriage, the parties have acquired a marital estate which should be equitably divided between the parties consistent with the factors set forth in 750 ILCS 5/503(d), including but not limited to, marital business interests in the business commonly known as Aribia LLC.

14. All marital assets including, but not limited to, financial accounts, real property, stock, investment accounts, and vehicles, should be divided pursuant to 750 ILCS 5/503 *et. seq.*

15. Any debt in Nicholas's name or incurred after separation by him should be his sole responsibility. To the extent the parties have incurred joint debt, said debt should be equitably divided between the parties.

16. To the full extent that Nicholas has dissipated any marital property or the marital estate or any alleged non-marital estate of his, the dissipation should be added back into the marital estate and Luisa should be allocated her proportionate share.

17. Nicholas has sufficient income and/or resources to pay his own attorneys' fees and costs and should be ordered to do so, without contribution from Luisa.

18. Luisa lacks sufficient property and income to pay attorneys' fees and costs incurred by her in bringing this action and this court should order Nicholas to contribute to Luisa's interim and final attorneys' fees and costs pursuant to 750 ILCS 5/508 *et. seq.* of the IMDMA.

19. Luisa has acquired both prior to and during the marriage certain non-marital property, which should be assigned to her.

20. Luisa and Nicholas have made no written agreements regarding spousal maintenance, division of property, or allocation of debt.

WHEREFORE, the Petitioner, **LUISA ARIAS MONTEALEGRE**, hereby requests the following relief:

A. For a Judgment for Dissolution of Marriage to be entered in accordance with this Petition for Dissolution of Marriage;

B. For entry of an Order that the Respondent be permanently barred from receiving maintenance, temporary or otherwise, from the Petitioner;

C. For entry of an Order that the Petitioner be granted a maintenance award pursuant to 750 ILCS 5/504(a);

D. For entry of an Order that the marital estate (including assets and liabilities) be divided pursuant to 750 ILCS 5/503;

E. For entry of an Order that the Petitioner be awarded her non-marital property;

F. For entry of an Order that the Respondent be responsible for his own attorneys' fees and costs, without contribution from the Petitioner;

G. For entry of an Order that the Respondent be required to contribute to the attorneys' fees and costs incurred by the Petitioner in connection with these proceedings;

H. For entry of an Order that the Respondent be responsible for any debt he has individually incurred, and that any joint debt be equitably divided;

I. For entry of an order that, to the extent the Respondent has dissipated any marital property or the marital estate, any dissipation by the Respondent should be added back into the marital estate and the Petitioner should be allocated her proportionate share; and

J. For such other and further relief as this Honorable Court deems equitable and just.

Respectfully submitted,

Molly Carmody

BERLIN MELZER LAW LLC
Attorneys for the Petitioner

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CERTIFICATION

On penalty of perjury and in accordance with Section 1-109 of the Illinois Code of Civil Procedure, the undersigned certifies that the allegations contained in the foregoing **Petition for Dissolution of Marriage** are true and correct, both in substance and in form, except those matters alleged upon information and belief, which matters she believes verily to be true.


Luisa Arias Montealegre (Oct 22, 2024 10:31 CDT)

Luisa Arias Montealegre, Petitioner

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